

STATE OF COLORADO

STATE GRIEVANCE BOARD

Amos D. Martinez
Administrator

1560 Broadway, Suite 1340
Denver, CO 80202
(303) 894-7766

July 11, 1994

Department of Regulatory Agencies

Joseph A. Garcia
Executive Director

Division of Registrations
Bruce M. Douglas, Director



Roy Romer
Governor

Kent Tompkins, M.A. 0

RE: SGB 94-136(U)
Letter of Admonition

Dear Mr. Tompkins:

At its meeting on June 10, 1994, the 11 member Colorado State Grievance Board (Board) reviewed the matter concerning your practice of psychotherapy without being listed in the mental health database directory. Pursuant to 12-43-220, C.R.S., (1992), all persons practicing psychotherapy in the State of Colorado after January 1, 1993, are required to be listed in the mental health database directory.

Upon review of the information available, the Board found you engaged in the practice of psychotherapy after January 1, 1993, without being listed in the mental health database directory. The records of the Colorado State Grievance Board verify that you did not become listed in the database directory until February 24, 1994. Because you are currently listed in the mental health database, the Board did not refer this case to the Mesa County District Attorney's Office for action under 12-43-220(3), C.R.S., (1992).

In the opinion of the Board there are reasonable grounds to believe you failed to meet the generally-accepted standards for the practice of psychotherapy in Colorado and violated sections 12-43-704 (1)(g), and 12-43-220(3), C.R.S.

Specifically, the Board determined that:

You failed to comply with section 12-43-220, C.R.S., which requires any licensed or unlicensed person engaged in the practice of psychotherapy to be listed in the mental health database directory.

The Board strongly encourages you to review and understand the Mental Health Practice Act requirements and obligations for the practice of psychotherapy in Colorado.

By this letter, the Board takes the formal disciplinary action of admonishing you for the conduct specified above.

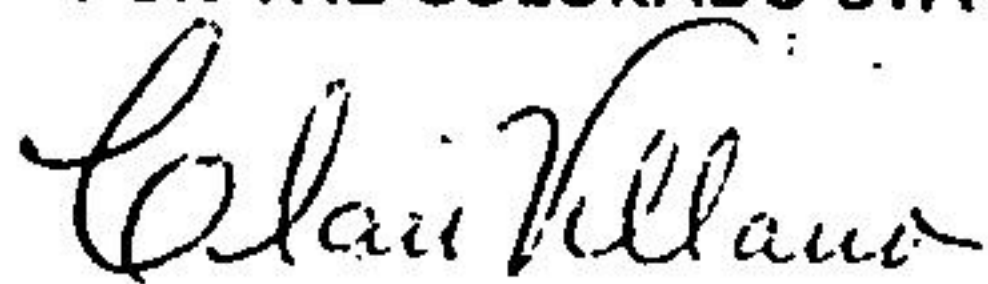
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In accordance with section 12-43-705 (3)(d), C.R.S., the Board advises you that you have the right to make a written request that the Board initiate formal disciplinary proceedings in order to adjudicate the conduct or acts upon which this letter is based. You must make your written request within twenty (20) days after receipt of this letter and address your request to Amos D. Martinez, Program Administrator, at the above letterhead address. If you make a timely request, the Board will deem this letter of admonition vacated and may proceed with disciplinary and/or injunctive proceedings in accordance with section 12-43-705 (2), C.R.S., and applicable rules.

If this letter is not vacated, it will become the final agency action in this matter.

Sincerely,

FOR THE COLORADO STATE GRIEVANCE BOARD



Clair Villano
Board Chair

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